

food, cigarettes, cigars, protein foods, maize, products, butter, ghee, cheese and other dairy products, pickles, jams, jellies, sausages, cider poultry and eggs, pulses, spices, oils, powder and condensed milk, honey, fresh and dehydrated vegetables, coffee, tea, cocoa, seeds, concentrate for cattle or poultry feed, fruits and all kinds of processed foods as well as materials required or used for preparation of or being food articles.

- (55) To acquire by purchase, lease, exchange, hire or otherwise develop or operate land buildings, and hereditaments of any tenure or description and any estate or interest therein, and any right over or connected with land and buildings so situated and develop or to turn the same to account as may seem expedient and in particular by preparing building sites and by constructing, reconstructing, altering, improving, decorating, furnishing and maintaining hotels, rooms, inns, flats, houses, restaurants, markets, shops, workshops; mills, factories, warehouses, cold storage, wharves, godowns, offices, safe deposit vaults, hostels, gardens, swimming pools, playgrounds, buildings, works and conveniences of all kinds and by leasing, hiring or disposing of the same.
- (56) To manage land, building and other properties, whether belonging to the company or not and to collect rents and income and to supply tenants and occupiers and others refreshments attendants, light, waiting rooms, reading rooms, meeting rooms, electric conveniences and other advantages.
- (57) To cultivate, plant, bring, buy, sell, prepare, convert, process, treat or manipulate in any manner all kinds of tobacco leaves, jute, cotton, hemp, tea, lac, coffee, cinchona, rubber, sugarcane, beet, dal, oilseeds, vegetable products, foodgrains and all other products of the soil, to run sheep and other cattle and poultry breeding farms and to carry on the business of fishing of pawns, lobsters, fish and other products of water.
- (58) To carry on business as transporters of goods, passengers, livestock and materials by road, rail, waterways, sea or air and to own, purchase, take or give on lease, charter or hire or otherwise run, use or acquire transport vehicle, craft ship or carriers of all kinds required for the transport business and to act as forwarding agents, warehousemen and booking agents.
- (59) To organise, run, maintain, operate, promote the business of interior decorators, furniture and carpet designers and manufacturers of boutiques, operators of fashion centres fashion shows and to make, acquire, export or deal in any way handicrafts, objects of art, precious stones, jewellery, whether artificial or otherwise and articles wherein precious metals or precious stones may be used in textile fabrics, and to manufacture and deal in any products as are dealt in by boutiques, fashion shows and interior decorators.
- (60) To carry on in India or abroad the business of hotels, restaurants, cafes, holiday camps, taverns, bars, beer-house, refreshment rooms, night clubs, cabarets and swimming pools and turkish baths and lodging or apartment house keepers, licensed victualers, wine, beer and spirit merchants, bakers and confectioners, importers and manufacturers of aerated, mineral and artificial waters and other drinks, fruit juices, cheese, butter, caterers for public generally, taxi, coach, cab, motor car and motor lorry, proprietors, livery, stable and garage proprietors, farmers, dairymen, ice merchants, importer and brokers of food, live and dead stock colonial and foreign products of all descriptions, hair dressers, perfumers, chemists, proprietors of clubs, baths, bars, dressing room, laundries, reading, writing and newspaper rooms, libraries, grounds and places of amusements, recreation, sports, entertainment and instruction of all kinds, tobacco and cigar and other allied products, agents for railways, shipping and airline companies and carries and theatrical and opera box office proprietors.

- (61) To carry on the business of manufacturers, importers, exporters, dealers, in all kinds and classes of paper, board, corrugated board, corrugating medium and pulp including writing paper, printing, absorbent paper, newsprint paper, wrapping paper, tissue paper, cover paper, blotting paper, filter paper, antique paper, ivory finish paper, coated paper, art paper, bank or bond paper, badami, brown or buff paper, bible paper, cartridge paper, cloth lines paper, azure laid and wove paper, cream laid and wove paper, grease proof paper, gummed paper, hand-made paper, parchment paper, drawing paper, kraft paper, manila paper, envelop paper, tracing paper, vellum paper, water proof paper, carbon paper, sensitised paper, chemically treated paper, paste board duplex and triplex board, hard board, plywood board, post cards, visiting cards, soda pulp, mechanical pulp, sulphite pulp, semi-chemical pulp and all kinds of articles in the manufacture of which in any form paper, board or pulp is used and also to deal in or manufacture any other articles or things of a character similar or analogous to the foregoing or any of them or connected therewith and to purchase or otherwise acquire, settle, improve and cultivate forests, lands and properties of any tenure whatsoever with a view to producing, cultivating, growing, timber, bamboo or other wood.
- (62) To undertake and execute any contract for supply, erection, designing and fabrication of all kinds of paper machinery, equipment, supply of technical know-how in respect thereof and to carry on any ancillary or other works comprised of any such contracts.
- (63) To carry on the business as manufacturers, importers, exporters, dealers, processors, stockists, agents, contractors, distributors, buyers or sellers of packages, containers, drums, cans, bags, boxes, wrappers, tape films, sheets and other packing materials made of paper, card-board, corrugated sheets, cloth, plywood, metals, plastic, PVC or other synthetic, chemical, fibres or natural products.
- (64) To carry on the business of manufacturers, importers, exporters, and dealers in any form of solar energy and to carry on the business of manufacturers, processors, assemblers, fitters, engineers, agents, representatives, proprietors, merchants, importers, exporters and dealers in solar energy devices, appliances, instruments and fittings, including solar collectors, solar tower plants and also to carry on the work of research in solar energy and solar energy devices, appliances, instruments, fittings, as may be found necessary for the efficient handling of the business of the company.
- (65) To guarantee the payment of money, unsecured or secured by or payable under or in respect of bonds, debentures, debentures-stocks, contracts, mortgages, charges, obligations and other securities of any company or of any authority, Central, State, Municipal, Local or otherwise or of any person whomsoever, whether incorporated or not and generally to transact all kinds of guarantee business, to guarantee the issue of or the payment of interest on the shares, debentures, debenture-stocks or other securities or obligations of any company or association and to pay or provide for brokerage, commission and underwriting in respect of any such issue and to transact all kinds of trust and agency business.
- (66) To promote, form or acquire any company and to take, Purchase or acquire shares or interest in any company and to transfer to any such company any property of this company and to take otherwise acquire, hold and dispose of or otherwise deal in and invest in any shares, debentures and other securities in or of any company or companies either out of its own funds or out of funds that it might borrow by issue of debentures or from bankers or otherwise howsoever or in any other manner whatsoever and to subsidise or otherwise assists any such company.

- (67) To carry on business as organisers agents, holders, dealers of or investors in saving units, lottery tickets, raffle, chit fund unit or units issued by the Unit Trust of India and to mobilise savings from members of the company or public, to invest and deal with the funds available with company as may deem fit from time to time and to pay, allow, give or distribute interest, dividends, prizes or gifts on or in relations to any such unit or units not amounting to lotteries.
- (68) To export, import, buy, sell, barter, exchange, pledge, make advance upon, invest in and otherwise deal in gold, silver, stocks, shares, securities, jute, seeds, handicrafts, and articles, produce and merchandise of all kinds and description either ready or for forward delivery as permissible by the object of the company and to make loans and advances and finance on hire purchase basis.
- (69) To render engineering, technical, management and other types of skilled and other services to all types of industry or organisations in India or abroad including for advertising, accounting, computer, secretarial and taxation matters and without limiting the generality of the above to act as consultants.
- (70) To achieve greater growth of the National economy through increased productivity, effective utilisation of materials and manpower resources export promotion and continued application of modern techniques so as to discharge its social and moral responsibilities to the shareholders, employers, customers, local community and the society.
- (71) To subscribe for, underwrite, purchase or acquire by gift, exchange or otherwise and to hold, issue on commission or otherwise, reissue, sell and deal with shares (whether fully paid or partly paid) stock, bonds, debentures, debenture stock obligations, notes and securities of any government, state, company, corporation, municipal or local or other body or authority either for ready or on forward transactions and subject to the provisions of companies Act, 2013, to cause such shares, stocks, debentures, securities or any of them to be invested in or held by a nominee or nominees for and on behalf of the company or to give any guarantee or security for the payment of dividend, interest thereon or otherwise in relation thereto.

4. The liability of the members is limited.

5. **Substituted vide shareholder's Resolution dt. 30.09.1994**

The Share Capital of the company is Rs. 12,10,00,000 (Rupees Twelve Crore Ten Lacs only) divided into 1,21,00,000 (One Crore Twenty One Lacs) Equity Shares of Rs. 10/- (Rupees Ten) each.

6. We, the several persons whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this Memorandum of Association, and we respectively agree to take the number of shares in the capital of the company set opposite respective names:

Name, Addresses, descriptions and Occupations of Subscribers	Numbr of Equity Shares taken by each subscriber	Signature of Subscribers	Name, Address, Description and Occupation of Witness
RAMA NAND JAIN S/o. L. Uddam Singh Jain 14, Alipur Road, Delhi. Industrialist	100 (One Hundred)	sd/- R.N. Jain	Witness for all the Eight Subscribers OM PRAKASH SHROFF, F.C.A. (Membership NO. 6329) S/o Late Kishori Lal Shroff B.K. SHROFF & CO., Chartered Accountants 3/2-B, Asaf Ali Road, New Delhi-110002 Chartered Accountants
JAGDISH RAI JAIN S/o. L. Uddam Singh Jain 25, West Friends Colony, N.D. Industrialist	100 (One Hundred)	sd/- J.R. Jain	
SHRI RAM JAIN S/o. L. Uddam Singh Jain 14, Alipur Road, Delhi Industrialist	100 (One Hundred)	sd/- S.R. Jain	
NIRANJAN LAL JAIN S/o. L. Uddam Singh Jain 1-B, Janki Shah Road, Hastings, Kolkata Industrialist	100 (One Hundred)	sd/- N.L. Jain	
RAMESH KUMAR S/o Jagdish Rai Jain 25, West Friends Colony, N.Delhi Industrialist	100 (One Hundred)	sd/- R.K. Jain	
BISHWANATH PASARI S/o, Gajanand Pasari D-214, Defence Colony, N.Delhi. Industrialist	100 (One Hundred)	sd/- B. Pasari	
PIYARELAL AGARWAL S/o. L. Rikhi Ram Agarwal 454, Azadpur, Delhi-110033 Industrialist	100 (One Hundred)	sd/- P.L. Agarwal	
VINOD KUMAR JAIN S/o. Jagdish Rai Jain 25, Friends Colony, New Delhi. Industrialist	100 (One Hundred)	sd/- V.K. Jain	
TOTAL SHARES TAKEN	800 (Eight Hundred)		

Place : New Delhi

Dated : 17-07-1979

(THE COMPANIES ACT, 2013)
COMPANY LIMITED BY SHARES
 (Incorporated under the Companies Act, 1956)
ARTICLE OF ASSOCIATION
OF

PASUPATI SPINNING AND WEAVING MILLS LIMITED

The following regulations comprised in these Articles of Association were adopted pursuant to Member's resolution passed at the annual general meeting of the Company held on 29th September, 2014 in substitution for, and to the entire exclusion of, the earlier regulations comprised in the extant Articles of Association of the Company.

TABLE 'F' EXCLUDED

1. (i) The regulations contained in the Table marked 'F' Table 'F' not to Apply.
- (ii) The regulations for the management of the Company and for the observance by the members thereto and their representatives, shall, subject to any exercise of the statutory powers of the Company with reference to the deletion or alteration of or addition to its regulations by resolution as prescribed or permitted by the Companies Act, 2013, be such as are contained in these Articles. Company to be governed by these Articles.
2. (i) In these Articles
 - (a) "Act" means the Companies Act, 2013 or any statutory modification or re-enactment thereof for the time being in force and the term shall be deemed to refer to the applicable section thereof which is relatable to the relevant Article in which the said term appears in these Articles and any previous company law, so far as may be applicable.
 - (b) "Articles" means these articles of association of the Company or as altered from time to time. "Articles"
 - (c) "Board of Directors" or "Board", means the collective body of the directors of the Company.
 - (d) "Company" means Pasupati Spinning & Weaving Mills Ltd. "Company"
 - (e) "Rules" means the applicable rules for the time being in force

Interpretation

as prescribed under relevant sections of the Act. "Rules"

(f) "seal" means the common seal of the Company. "Seal"

- (ii) Words imparting the singular number shall include the plural number and words imparting the masculine gender shall, where the context admits, include the feminine and neuter gender.

"Number" and Gender"

- (iii) Unless the context otherwise requires, words or expressions contained in these Articles shall bear the same meaning as in the Act or the Rules, as the case may be. Expressions in the Articles to bear the same meaning as in the companies act 2013.

SHARE CAPITAL AND VARIATION OF RIGHTS

*Shares under
control of Board*

3. Subject to the provisions of the Act and these Articles, the shares in the capital of the Company shall be under the control of the Board who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par and at such time as they may from time to time think fit.

*Directors may allot
shares otherwise
than for cash.*

4. Subject to the provisions of the Act and these Articles, the Board may issue and allot shares in the capital of the Company on payment or part payment for any property or assets of any kind whatsoever sold or transferred, goods or machinery supplied or for services rendered to the Company in the conduct of its business and any shares which may be so allotted may be issued as fully paid-up or partly paid-up otherwise than for cash, and if so issued, shall be deemed to be fully paid-up or partly paid-up shares, as the case may be.

*Kinds of Share
Capital*

5. The Company may issue the following kinds of shares in accordance with these Articles, the Act, the Rules and other applicable laws:

(a) Equity share capital:

(i) with voting rights; and / or

(ii) with differential rights as to dividend, voting or otherwise in accordance with the Rules; and

(b) Preference share capital

Issue of certificate

6. (i) Every person whose name is entered as a member in the register of members shall be entitled to receive within two months

after allotment or within one month from the date of receipt by the Company of the application for the registration of transfer or transmission or within such other period as the conditions of issue shall provide -

- (a) one certificate for all his shares without payment of any charges; or
- (b) several certificates, each for one or more of his shares, upon payment of such charges as may be fixed by the Board for each certificate after the first.

- (ii) Every certificate shall be under the seal and shall specify the shares to which it relates and the amount paid-up thereon.

Certificate to bear seal

- (iii) In respect of any share or shares held jointly by several persons, the Company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders.

One certificate for shares held jointly

- 7. A person subscribing to shares offered by the Company shall have the option either to receive certificates for such shares or hold the shares in a dematerialized state with a depository. Where a person opts to hold any share with the depository, the Company shall intimate such depository the details of allotment of the share to enable the depository to enter in its records the name of such person as the beneficial owner of that share.

Option to receive share certificate or hold shares with depository

- 8. If any share certificate be worn out, defaced, mutilated or torn or if there is no further space on the back for endorsement of transfer, then upon production and surrender thereof to the Company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the Company and on execution of such indemnity as the Board deems adequate, a new certificate in lieu thereof shall be given. Every certificate under this Article shall be issued on payment of fees for each certificate as may be fixed by the Board.

Issue of new certificate in place of one defaced, lost or destroyed

- 9. The provisions of the foregoing Articles relating to issue of certificates shall *mutatis mutandis* apply to issue of certificates for any other securities including debentures (except where the Act otherwise requires) of the Company.

Provisions as to issue of certificates to apply mutatis mutandis to debentures, etc.

- 10. (i) The Company may exercise the powers of paying commissions conferred by the Act, to any person in connection with the subscription to its securities, provided that the rate per cent or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by the Act and the Rules.

Power to pay commission in connection with securities issued

<i>Rate of commission in accordance with Rules</i>	(ii) The rate or amount of the commission shall not exceed the rate or amount prescribed in the Rules.
<i>Mode of payment of commission</i>	(iii) The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.
<i>Variation of member's rights</i>	11.(i) If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, subject to the provisions of the Act, and whether or not the Company is being wound up, be varied with the consent in writing, of such number of the holders of the issued shares of that class, or with the sanction of a resolution passed at a separate meeting of the holders of the shares of that class, as prescribed by the Act.
<i>Provisions as to general meetings to apply mutatis mutandis to each meeting</i>	(ii) To every such separate meeting, the provisions of these Articles relating to general meetings shall <i>mutatis mutandis</i> apply.
<i>Issue of further shares not to affect rights of existing members</i>	12. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking <i>pari-passu</i> therewith.
<i>Power to issue redeemable preference shares</i>	13. Subject to the provisions of the Act, the Board shall have the power to issue or re-issue preference shares of one or more classes which are liable to be redeemed, or converted to equity shares, on such terms and conditions and in such manner as determined by the Board in accordance with the Act.
<i>Further issue of share capital</i>	14.(i) The Board or the Company, as the case may be, may, in accordance with the Act and the Rules, issue further shares to - (a) persons who, at the date of offer, are holders of equity shares of the Company; such offer shall be deemed to include a right exercisable by the person concerned to renounce the shares offered to him or any of them in favour of any other person; or (b) employees under any scheme of employee's stock option; or (c) any persons, whether or not those persons include the persons referred to in clause (a) or clause (b) above.
<i>Mode of further issue of shares</i>	(ii) A further issue of shares may be made in any manner whatsoever as the Board may determine including by way of preferential offer or private placement, subject to and in accordance with the Act and the Rules.

LIEN

- | | |
|---|--|
| <p>15. (i) The Company shall have a first and paramount lien -</p> <p>(a) on every share (not being a fully paid share), for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share; and</p> <p>(b) on all shares (not being fully paid shares) standing registered in the name of a member, for all monies presently payable by him or his estate to the Company; Provided that the Board may at any time declare any share to be wholly or in part exempt from the provisions of this clause.</p> | <p><i>Company's lien on shares</i></p> |
| <p>(ii) The Company's lien, if any, on a share shall extend to all dividends or interest, as the case may be, payable and bonuses declared from time to time in respect of such shares for any money owing to the Company.</p> | <p><i>Lien to extend to dividends, etc.</i></p> |
| <p>(iii) Unless otherwise agreed by the Board, the registration of a transfer of shares shall operate as a waiver of the Company's lien.</p> | <p><i>Waiver of lien in case of registration</i></p> |
| <p>16. The Company may sell, in such manner as the Board thinks fit, any shares on which the Company has a lien; Provided that no sale shall be made</p> <p>(a) unless a sum in respect of which the lien exists is presently payable; or</p> <p>(b) until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or to the person entitled thereto by reason of his death or insolvency or otherwise.</p> | <p><i>As to enforcing lien by sale</i></p> |
| <p>17. (i) To give effect to any such sale, the Board may authorise some person to transfer the shares sold to the purchaser thereof.</p> | <p><i>Validity of sale</i></p> |
| <p>(ii) The purchaser shall be registered as the holder of the shares comprised in any such transfer.</p> | <p><i>Purchaser to be registered holder</i></p> |
| <p>(iii) The receipt of the Company for the consideration (if any) given for the share on the sale thereof shall (subject, if necessary, to execution of an instrument of transfer or a transfer by relevant system, as the case may be) constitute a good title to the share and the purchaser shall be registered as the holder of the share.</p> | <p><i>Validity of Company's receipt.</i></p> |
| <p>(iv) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by</p> | <p><i>Purchaser not affected</i></p> |

any irregularity or invalidity in the proceedings with reference to the sale.

*Application of
proceeds of sale*

18. (i) The proceeds of the sale shall be received by the Company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable.

*Payment of
residual money*

- (ii) The residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the shares at the date of the sale.

*Outsider's lien not
to affect Company's
lien*

19. In exercising its lien, the Company shall be entitled to treat the registered holder of any share as the absolute owner thereof and accordingly shall not (except as ordered by a court of competent jurisdiction or unless required by any statute) be bound to recognize any equitable or other claim to, or interest in, such share on the part of any other person, whether a creditor of the registered holder or otherwise. The Company's lien shall prevail notwithstanding that it has received notice of any such claim.

*Provisions as to lien to
apply mutatis mutandis
to debentures, etc*

20. The provisions of these Articles relating to lien shall *mutatis mutandis* apply to any other securities including debentures of the Company.

CALLS ON SHARES

Board may make calls.

21. (i) The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times.

Notice of call

- (ii) Each member shall, subject to receiving at least fourteen day's notice specifying the time or times and place of payment, pay to the Company, at the time or times and place so specified, the amount called on his shares.

*Board may extend
time for payment*

- (iii) The Board may, from time to time, at its discretion, extend the time fixed for the payment of any call in respect of one or more members as the Board may deem appropriate in any circumstances.

*Revocation or
postponement of call.*

- (iv) A call may be revoked or postponed at the discretion of the Board.

*Call to take effect from
date of resolution*

22. A call shall be deemed to have been made at the time when the resolution of the Board authorising the call was passed and may be required to be paid by installments.